the time. Venugopal was a rising star who would go on to practise at the Supreme Court for over five decades and be appointed attorney general by the Modi government in 2017.

As law officers during the Charan Singh government, Sinha and Venugopal were in the precarious position of defending constitutional amendments that were made by the Congress government during the Emergency. Their initial response to Palkhivala's arguments was to seek to persuade the court that the questions Palkhivala raised did not arise from the facts of the Minerva Mills case at all.[16] They also argued that Article 31C reinforced rather than undermined the basic structure of the Constitution. This was because the directive principles provided goals in the absence of which fundamental rights 'would be meaningless'.[17] Responding to Palkhivala's argument that Article 31C's protective blanket would be all-encompassing, Venugopal submitted charts to the Supreme Court illustrating decided cases involving laws that would not have been saved by Article 31C.[18] It has long been suspected – but never definitively established – that Sinha and Venugopal were instructed by the government to defend the nationalization of Minerva Mills in general terms, while at the same time doing little to protect the Congress government's amendments to the Constitution.[19]

The hearing took place before a bench of five judges of the Supreme Court, headed by Chief Justice Y.V. Chandrachud. Justice Chandrachud formed part of the group of judges that rejected the basic structure doctrine in the Kesavananda case. Also on the bench were Justices A.C. Gupta, N.L. Untwalia, P.N. Bhagwati and P.S. Kailasam. The hearing lasted twenty days, from 22 October 1979 to 16 November 1979.[20] Although this seemed long enough, it was dwarfed by the length of the Kesavananda case hearing (which had taken place over sixty-eight days in 1972–73).[21] After the hearing concluded but before the judgement was pronounced, the Congress party returned to power with a comfortable majority, with Indira Gandhi sworn in as prime minister yet again.

About six months passed without the judgement having been delivered. Perhaps conscious that the significant delay would only be exacerbated by